

	30-2025-01451346	Cross-Defendant Jonathan Mejia's Motion to Set Aside Default Judgment is taken OFF CALENDAR pursuant to the Request for Dismissal without Prejudice of the Cross-Complaint filed July 20, 2026 (ROA #125).
3	T. H. vs. AV Investment & Consultant Group, LLC 30-2024-01404661	<u>Motion to Consolidate</u> Defendants AV Investment & Consultant Group, LLC's; Andrew Vo's; and Ngoc Dung's Motion to Consolidate is DENIED without prejudice. <u>Pending Motion</u> Defendants AV Investment & Consultant Group, LLC; Andrew Vo; and Ngoc Dung move to consolidate: • <i>Tran Hung and Cu Khanh vs. AV Investment & Consultant Consolidate Group, LLC; Andrew Vo; and Ngoc Dung</i>, Orange County Superior Court Case Number 30-2024-01404661 (Earlier Action); and • <i>Tran Hung and Cu Khanh v. Allegheny Casualty Company, Westfield National Insurance Company, and Andrew Vo</i>, Orange County Superior Court Case Number 30-2026-01539064 (Later Action). <u>Prior Proceedings</u> This court previously ruled that Defendants had not complied with California Rules of Court rule 3.350(a)(1)(C), which states that "[a] notice of motion to consolidate must ... [b]e filed in each case sought to be consolidated." (Cal. Rules of Court, rule 3.350(a)(1)(C); see ROA #76 at p. 2.) While Defendants filed this motion in the Earlier Action, the court records revealed that they failed to do so in the Later Action, <i>Tran Hung and Cu Khanh v. Allegheny Casualty Company, Westfield National Insurance Company, and Andrew Vo</i>. Further, while the motion references a declaration from attorney Walter Emil Teague III, no such declaration was filed. (See ROA #75 at p. 2.)

		The court then continued the hearing on this motion to allow Defendants to “file and serve supplemental motion papers that include the Declaration of Walter Emil Teague III, no later than July 10, 2026” and to “to file this motion in <i>Tran Hung and Cu Khanh v. Allegheny Casualty Company, Westfield National Insurance Company, and Andrew Vo</i>, Orange County Superior Court Case Number 30-2026-01539064 and serve this motion on all parties that have appeared in that action, no later than July 10, 2026.” (<i>Id.</i> at p. 1.) The court stated that “Defendants are advised that the court may deny this motion if they fail to supplement the motion papers or fail to serve the motion papers on all parties in the Later Case.” (<i>Id.</i> at p. 3.) Defendants have failed to comply with either of the court’s instructions. Defendants did not file the Declaration of Walter Emil Teague III and did not file this motion in the Later Action. Therefore, the court will deny the motion. The court clerk shall give notice of this ruling.
4	Kwak vs. Progeny Psychiatric Clinic 30-2025-01482453	<u>Motion to Dismiss</u> Defendant Progeny Psychiatric Clinic’s Motion to Dismiss Plaintiff’s Complaint is DENIED. <u>Pending Motion</u> Defendant Progeny Psychiatric Clinic moves to dismiss Plaintiff’s pursuant to Civil Procedure Code section 581(f)(2) and California Rules of Court rule 3.1320(h). <u>Dismissal of Complaint=</u> The court has discretion to dismiss a complaint if, “after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” (Code Civ. Proc., § 581, subd. (f)(2).) In addition, “[a] motion to dismiss the entire action and for entry of judgment after expiration of the time to amend following the sustaining of a